

"The Land Ordinance of May 20, 1785" An Ohioville Borough, Beaver County, PA Connection to the American Revolution

by Joseph M. Jonas

One of the main reasons the "LAND ORDINANCE OF 1785" was enacted by the Continental Congress was an attempt to alleviate the financial crisis with which the Revolutionary War had saddled the fledgling American Government.

Representatives from the thirteen states had debated and wrestled with the problem of raising money since the start of the revolution. The war debt would exceed 100 million dollars. In yeoman service, the private sector had raised over 20 million dollars, leaving 80 million dollars, according to Thomas Jefferson, to be paid. Under the Articles of Confederation, which was the law of the land in 1781, -- the Constitution not having been adopted until 1789 -- Congress had no power to tax and very little power to enforce any program. But the tremendous increase in pressure to "pay the bills" made them realize that they must do something.

So, finally they agreed to enact a revised version of a plan originally written and submitted by Jefferson. The basis of this plan called for the surveying and selling of the land in the Northwest Territory. And, according to the Indian commissioner appointed by Congress, General Richard Butler, it would raise enough money to eliminate the national debt completely and put America on the road to everlasting prosperity!

To clear the land titles of the Territory, treaties with the Indians had been negotiated. The second treaty of Fort Stanwix took place in 1784 and the Fort McIntosh treaty was signed January 21, 1785. Most tribes by now were reluctant to sign any treaties and failed to cooperate with the government's emissaries. The few Indians who did sign were dismissed by their fellowman as not being representatives of the Indian Nations. Miffed over the treaties forced on them and goaded by dissident white men, indignant Indians were to escalate a reign of harassment that brought fear and anxiety to those involved in the survey of the Northwest Territory.

Captain Thomas Hutchins, United States geographer, who in 1784 had worked on Pennsylvania's southern border for the State of Pennsylvania, and had expressed a desire to work on its western border, was advised by Congress not to become involved in any additional state projects as they would soon be needing his services. The Land Ordinance was ratified May 20, 1785; so, the blueprint to develop the Northwest

Territory was now a law. It was placed into Hutchins' experienced hands for implementation, and he immediately set the wheels in motion.

The text of this Ordinance concerns Beaver County directly so it should be of special interest to local residents. It reads as follows:

"Be it ordained by the United States in Congress assembled, that the territory ceded by individual states to the United States, which has been purchased of the Indian inhabitants, shall be disposed of in the following manner:

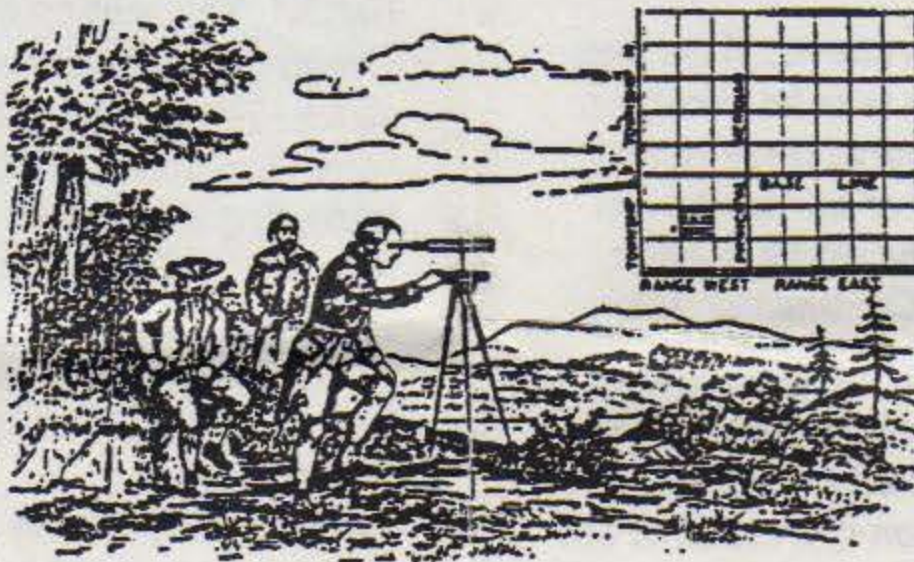
A surveyor from each state shall be appointed by Congress or a Committee of the States, who shall take an oath for the faithful discharge of his duty, before the Geographer of the United States...

The surveyors, as they are respectively qualified, shall proceed to divide the said territory into townships of six miles square, by lines running due north and south, and others crossing these at right angles, as near as may be, unless where the boundaries of the late Indian purchases may render the same impracticable...

The first line, running due north and south as aforesaid, shall begin on the river Ohio, at a point that shall be found to be due north from the western termination of a line, which has been run as the southern boundary of the State of Pennsylvania:"

This last sentence is a most important correlation, as it establishes the fact that a line perpendicular to the western terminal of Pennsylvania's southern boundary, running north, will intersect the Ohio River on the boundary line between present day Ohioville Borough in Beaver County and Columbiana County in Ohio. Specifically, this point of intersection is on the river bank about three miles west of Midland, adjacent to the Smith's Ferry-Glasgow area and across the Ohio River from Georgetown, PA. Here, therefore, lies the historical "POINT OF BEGINNING" of the NORTHWESTERN TERRITORY.

"and the first line, running east and west, shall begin at the same point, and shall extend throughout the whole territory. Provided that nothing herein shall be construed, as fixing the western boundary of the State of Pennsylvania. The geographer shall designate the townships, or fractional parts of townships, by numbers progressively from south to north; always beginning each range with No. 1; and the ranges shall be



distinguished by their progressive numbers to the westward. The first range, extending from the Ohio to the lake Erie, being marked No. 1."

As changes in strategy occur when men are exposed to physical or mental stalemates, as in warfare or a chess game, the actual development of this part of the Ordinance was quite different than the letter of the law had originally ordained. By August 23rd, 1785, Pennsylvania's western border, from the western terminal of the southern border to the Ohio River, had been run by Pennsylvania and Virginia. A joint commission from two states had appointed Dr. David Rittenhouse and Col. Andrew Porter surveyors for Pennsylvania; and Andrew Ellicott and Joseph Neville for Virginia.

Being four of the most talented contemporaries of Hutchins, they skillfully completed the job in slightly over two months. But the pressure continued to mount on Hutchins to make the territory's land available more quickly. To facilitate the situation, it was decided not to wait until the Western reserve claims were sorted out and the line run north to lake Erie. Rather, they would run the East-West Geographer's line from the point established by the surveyors of the joint Pennsylvania-Virginia commission and immediately begin the division of the land from it southward to the Ohio River.

"The Geographer shall personally attend to the running of the first east and west line; and shall take the latitude of the extremes of the first north and south line, and of the mouths of the principal rivers.

The lines shall be measured with a chain; shall be plainly marked by chaps on the trees, and exactly described on a plat; whereon shall be noted by the surveyor, at their proper distances, all mines, salt-springs, salt-licks, and mill-seats, that shall come to his knowledge, and all water-courses, mountains and other remarkable and permanent things, over and near which such lines shall pass, and also the quality of the lands.

The plats of the townships respectively, shall be marked by subdivisions into lots of one mile square, or 640 acres, in the same direction as the external lines, and numbered from 1 to 36; always beginning the succeeding range of the lots with the number next to that with which the preceding one concluded...

...And the geographer shall make...returns, from time to time, of every seven ranges as they may be surveyed. The Secretary of War shall have recourse thereto, and shall take by lot therefrom, a number of townships...as will be equal to one seventh part of the whole of such seven ranges...for the use of the late Continental army...

The board of treasury shall transmit a copy of the original plats, previously noting thereon the townships and fractional parts of townships, which shall have fallen to the several states, by the distribution aforesaid, to the commissioners of the loan-office of the several states,

who, after giving notice...shall proceed to sell the townships or fractional parts of townships, at public venue, in the following manner, viz.: The township or fractional part of a township No. 1, in the first range, shall be sold entire; and No.2, in the same range, by lots; and thus in alternate order through the whole of the first range...provided, that none of the lands, within the said territory be sold under the price of one dollar the acre, to be paid in specie, or loan-office certificates, reduced to specie value, by the scale of depreciation, or certificates of liquidated debts of the United States, including interest, besides the expense of the survey and other charges thereon, which are hereby rated at thirty-six dollars the township...on failure of which payment, the said lands shall again be offered for sale. There shall be reserved for the United States out of every township the four lots being numbered 8, 11, 26, 29, and out of every fractional part of a township, so many lots of the same number as shall be bound thereon, for future sale. There shall be reserved the lot No. 16 of every township, for the maintenance of public schools within said township; also one-third part of all gold, silver, lead and copper mines, to be sold, or otherwise disposed of as Congress shall hereafter direct...And whereas Congress...stipulated grants of land to certain officers and soldiers of the late Continental army...for complying with such engagements, be it ordained, that the secretary of war...determine who are the objects of the above resolutions and engagements...and cause the townships, or fractional parts of townships, hereinbefore reserved for the use of the late Continental army, to be drawn for in such manner as he shall deem expedient..."

And so, the legislators in the Continental Congress waited with anticipation and high hopes for the success of this venture. Word spread to their constituents and was accepted with mixed reactions. The Indian Commissioners had assured everyone that all their problems were placated, Captain Hutchins was judiciously attending to a myriad of details and the appointed surveyors were preparing for the trip to Fort Pitt to purchase supplies.

Soon they would be guiding their canoes down the Ohio River to a camp opposite the mouth of Little Beaver Creek, near Mill Creek and present-day Georgetown, PA. On September 30, 1785, they would cross the river into present day Ohioville Borough and inauspiciously begin what has been called "the greatest subdivision of land on Earth." This survey eventually reached the Pacific Ocean-and Alaska-and created 30 of the remaining 37 states. From 1785 until 1789, when the old seven ranges were completed, there occurred some of the most intriguing adventures of frontier life ever recorded in America's history.

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